

MEMORANDUM

April 4, 2016

Seth Lloyd
Development Department
City of Cheyenne, WY

RE: Plains Pipeline near Cheyenne WY

Rocky Mountain Pipeline Systems (RMPS) 16-in pipeline right of way may be affected by the development or expansion of the Whitney Road located east of the City of Cheyenne, WY.

Attached at barcode 1069798, Our File No 1981-0090, is the permit granted by the Board of Commissioners for Laramie County for RMPS' 16-in pipeline and recorded at Reception 460462 in Book 1976, Page 1815 of the Laramie County, WY Deed of Records. The permit and the recording information should be reflected on the plat.

Attached is a revised plat showing the approximate location of RMPS 16-in pipeline within the 20' utility easement recorded at Book 1291, Page 273 (Land Records does not have a copy of this utility easement). Should RMPS' 16-in pipeline lay within this 20' utility easement a possible encroachment will occur if Whitney Road is expanded.

The permit does not provide an easement width, but letters dated 6/12/2006 to the City of Cheyenne, the County of Laramie and Mr. William Edwards state a pipeline easement width of 15 feet. Also attached are a series of pipeline maps showing the approximate location of RMPS 16 in pipeline. The actual location of the 16-in pipeline may require a survey as Land Records does not have alignment drawings of the Ft Laramie to Cheyenne 16-in pipeline. The survey or an alignment drawing would be necessary determine the distance of the pipeline from the existing Whitney Road.

Pat Rielly

Plains All American GP LLC
333 Clay Street
Suite 1600
Houston, TX 77002

Encl.

**BOARD APPROVAL
BY THE BOARD OF COMMISSIONERS
FOR LARAMIE COUNTY**

Approval Date: October 17, 2006

UNP-C

WHEREAS, the applicant, Rocky Mountain Pipeline System, LLC, has requested approval for a Crude Oil Pipeline on the following described real property within Laramie County: portions of Sections 1, 2, 3, and 4, T.13N.; Sections 2, 11, 14, 23, 26, 35 and 36, T.14N.; Sections 3, 4, 10, 11, 12, 13, 24, 25 and 36, T.15N.; Sections 3, 9, 10, 16, 21, 28, 33, T.16N.; Sections 4, 9, 16, 21, 28, 33 and 34, T.17N.; Sections 3, 10, 15, 22, 27, 33 and 34, T.18N.; Sections 2, 11, 14, 22, 23, 27 and 34,*all in R.66W., 6th P.M., Laramie County, Wyoming (located beginning at the Frontier Refinery traversing easterly within the UPRR right of way paralleled to the north side of Campstool Rd. to Converse Rd., thence continuing easterly within the Campstool Rd. right of way on the north side of the road, thence north within the westerly portion of the Whitney Rd. right of way to the UPRR right of way. Thence continuing northerly to the westerly portion of Whitney Rd. to Pershing Ave., thence continuing northerly within the western portion of the Whitney Rd. right of way to Iron Mountain Rd., at that point crossing Whitney Rd. at a northeasterly direction leaving the public right of way and continuing north to the Laramie/Platte County line); and

* T.19N.

Oh

WHEREAS, the notification requirements in Sections 74.000 Board Approval Process for Uses Requiring Public Hearings and 55.050(b) Highpower Transmission Lines, Water Pipelines over 12" in diameter, and Energy Pipelines, of the Zoning Ordinance and the purpose listed in Section 50.050(c) have been met; and

WHEREAS, all other rules and regulations set forth by "The Cheyenne and Laramie County Zoning Ordinance 1988" and amendments thereto, apply to this Board approval; and particularly Section 55.060 Utility Regulations; and

WHEREAS, The Board of Commissioners for Laramie County has granted this Board Approval, to permit the property to be used for the purpose requested.

NOW, THEREFORE, IT IS ORDERED THAT the above-described property may be used for the purpose requested, it being understood and agreed that this use must be commenced within one (1) year of the date of issuance of this approval, and that an intentional change from the approved plan for said use shall revoke this approval whereupon the general zoning ordinance regulations shall govern this use and development of said property.

Diane Humphrey
Diane Humphrey, Chair
Board of Commissioners

SEAL

Debra K. Lathrop
Debra K. Lathrop, County Clerk

cc: Owner
Agent
File (UNP-C)

RECORDED 10/31/2006 AT 3:32 PM REC# 460462 K# 1976 PG# 1815
DEBRA K. LATHROP, CLERK OF LARAMIE COUNTY, WY PAGE 1 OF 1

Received And Approved
As To Form Only
By The County Attorney

1981-0090



STATE OF WYOMING
LARAMIE COUNTY

I hereby certify that this is a true and complete copy
of the document filed in this office and admitted to
record on 10-31-2006, Reception 460 462
in Book 1976, Page(s) 1815.
Date 10/19/07 Debra K. Lathrop
Laramie County Clerk
BY Debra K. Lathrop, Deputy

ROCKY MOUNTAIN PIPELINE SYSTEM LLC

1560 Johnston Street, Suite D
Wheatland, WY 82201
(307) 322-2558



June 12, 2006

City of Cheyenne
2101 O'Neil Ave.
Cheyenne, WY 82001

Subject: Rocky Mountain Pipeline System LLC Crude Oil Pipeline Project
Laramie County Board of County Commissioners Meeting

Dear Landowner:

This letter is to notify you that Rocky Mountain Pipeline System LLC ("RMPS") will be appearing before the Laramie County Board of County Commissioners at the 3:30 p.m., Tuesday, July 18, 2006 board meeting in the City Council Chambers, 2101 O'Neil Avenue, Room 118, Cheyenne, Wyoming 82001.

The purpose of this appearance is to request approval of RMPS' planned crude oil pipeline that crosses a portion of Laramie County, Wyoming. You are being personally notified of this meeting because you have property that is either crossed by the pipeline route or is within 1,500 feet of the pipeline route. A map with an overview of the pipeline route is enclosed with this letter for reference.

The pipeline will be constructed in a 15 foot permanent easement that has been, or is being, purchased for that purpose.

Persons wishing to make comments regarding this application may do so at the meeting noted above. Information about meeting procedures may be obtained by contacting the City/County Development Office, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, (307) 637-6282.

Persons having questions of RMPS may contact the RMPS project office in Wheatland at the address and telephone on this letterhead.

Sincerely,



Cliff MacNiven
Right of Way Agent

Enclosure

ROCKY MOUNTAIN PIPELINE SYSTEM LLC

1560 Johnston Street, Suite D
Wheatland, WY 82201
(307) 322-2558



June 12, 2006

County of Laramie
P.O. Box 608
Cheyenne, WY 82003-0608

Subject: Rocky Mountain Pipeline System LLC Crude Oil Pipeline Project
Laramie County Board of County Commissioners Meeting

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Sincerely,


Cliff MacNiven
Right of Way Agent

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ROCKY MOUNTAIN PIPELINE SYSTEM LLC

1560 Johnston Street, Suite D
Wheatland, WY 82201
(307) 322-2558



June 12, 2006

Mr. William J. Edwards
P.O. Box 2630
Cheyenne, WY 82003-2630

Subject: Rocky Mountain Pipeline System LLC Crude Oil Pipeline Project
Laramie County Board of County Commissioners Meeting

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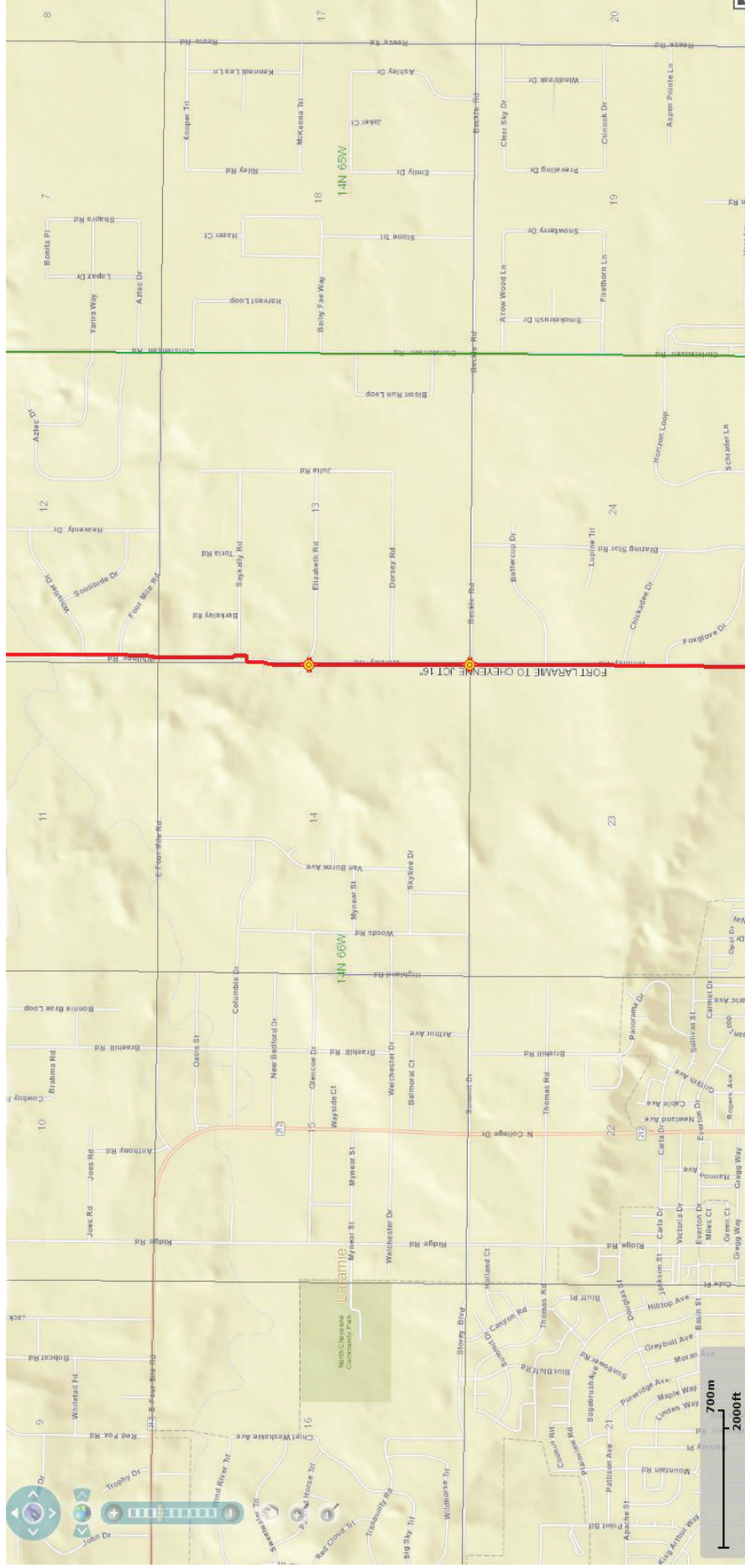
Sincerely,

A handwritten signature in black ink, appearing to read "Cliff MacNiven", is written over the word "Sincerely,".

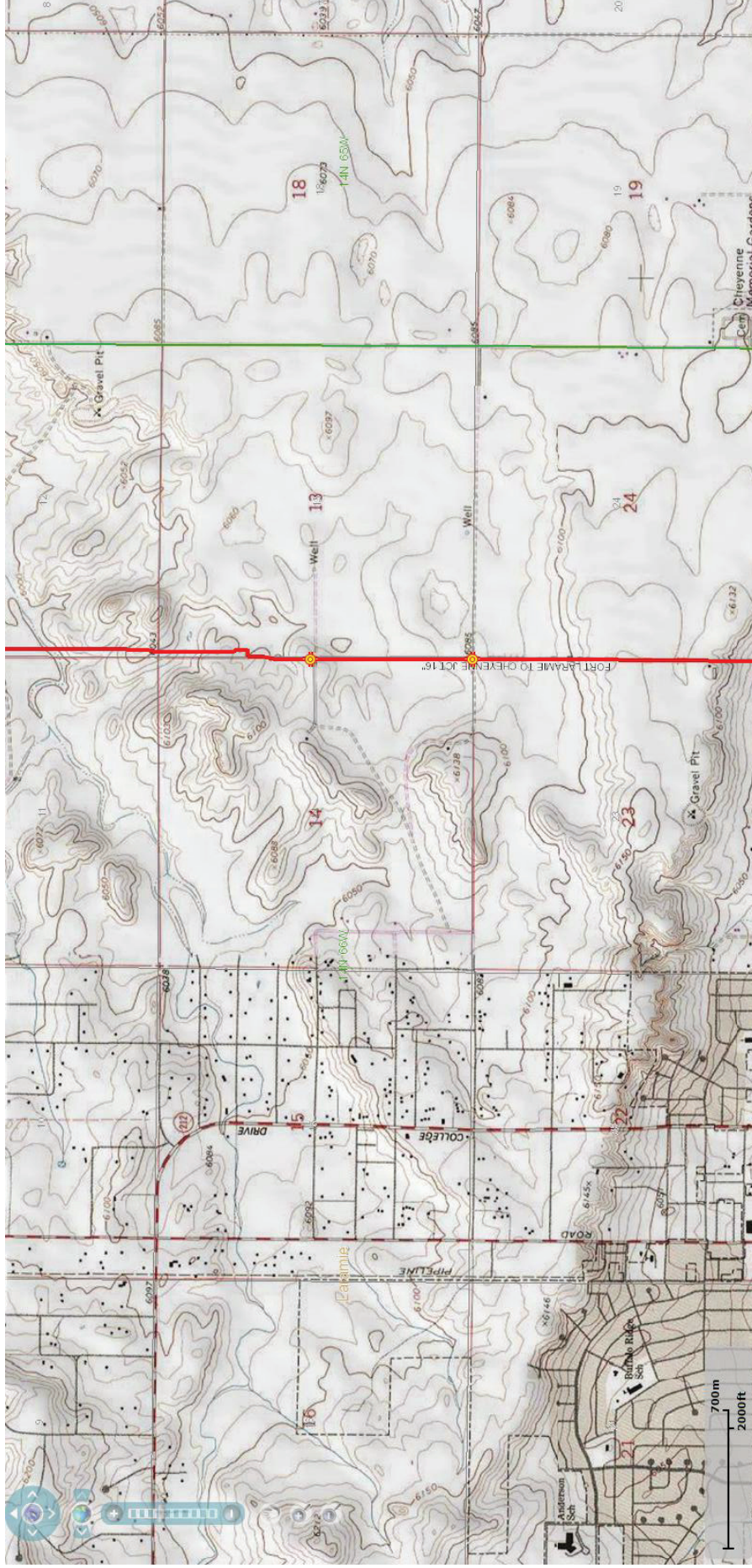
Cliff MacNiven
Right of Way Agent

Enclosure

Possible encroachment affecting RMPs' Ft Laramie to Cheyenne 16-in pipeline
SE/4 Sec 14-T14N-R66W, Laramie County, WY



Possible encroachment affecting RMP's Ft Laramie to Cheyenne 16-in pipeline
SE/4 Sec 14-T14N-R66W, Laramie County, WY



Possible encroachment affecting RMPS' Ft Laramie to Cheyenne 16-in pipeline
SE/4 Sec 14-T14N-R66W, Laramie County, WY

